



ADULT DEPENDENT RELATIVE VISA

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UK Adult Dependent Relative Visa: Eligibility, Requirements & How to Apply

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The Adult Dependent Relative (ADR) visa allows adult family members of British citizens, individuals settled in the UK, those with protection status (refugee status or humanitarian protection), or persons with limited leave under the EU Settlement Scheme, to join their relative in the UK on a permanent basis.

To qualify, applicants must demonstrate that, as a result of age, illness, or disability, they require long-term personal care to perform everyday tasks and that such care is either unavailable or unaffordable in their country of residence. The applicant's maintenance, accommodation and care must be provided by the UK-based sponsor without access to public funds.

Successful applicants are generally granted indefinite leave to enter the UK. However, in certain circumstances – particularly where the sponsor has only limited leave under the EU Settlement Scheme – limited leave to enter may be granted instead, with a potential route to settlement.

Once granted settlement, Adult Dependent Relatives may, in principle, be eligible to sponsor their own dependents, although the eligibility of such applications will depend on the specific immigration category and the nature of the dependency.

- [Apply for an Adult Dependent Relative Visa: Top 10 FAQs](#)

1. Requirements for an Adult Dependent Relative Visa

In order to qualify for an Adult Dependent Relative visa you will need to satisfy UK Visas and Immigration that:

- You are the parent, grandparent, brother, sister, son or daughter of a person in the UK, and both you and your sponsor are aged 18 or over. Your sponsor must be either a British citizen, present and settled in the UK (i.e. holding indefinite leave to remain or permanent residence), in the UK with limited leave under the EU Settlement Scheme (pre-settled status) or in the UK with refugee status or humanitarian protection;
- As a result of age, illness or disability, you require long-term personal care to perform everyday tasks, such as washing, dressing or cooking;
- You are unable, even with the practical and financial support of your UK-based relative, to obtain the required level of care in the country where you are living, either because the care is not available or not affordable, and there is no

other person (such as a close relative, home-help, housekeeper, nurse, carer, or care or nursing home) who can reasonably provide it;

- You will be adequately maintained, accommodated and cared for in the UK by your sponsoring relative without recourse to public funds. If your sponsor is a British citizen or settled in the UK, they will need to sign a five-year undertaking to confirm this commitment;
- You have provided a valid tuberculosis (TB) test certificate, if required under the Immigration Rules for your country of residence.

The specific evidence required and the standard of proof are both high. The burden rests on the applicant to demonstrate that all requirements are met. Given the complexity and demanding evidential threshold of the Adult Dependent Relative route, we strongly recommend seeking expert legal advice to maximise your prospects of success.

To discuss your Adult Dependent Relative visa application with one of our immigration barristers, contact our ADR Visa lawyers on 0203 617 9173 or complete our enquiry form below.

2. Meeting the Long-Term Personal Care Requirement for ADR Visas

One of the key requirements for an Adult Dependent Relative visa is that the applicant, as a result of age, illness or disability, must require long-term personal care to perform everyday tasks such as washing, dressing, or cooking. The requirement is strict, and applicants must be able to show that they cannot manage these activities without significant and ongoing assistance.

The Home Office will expect to see objective, independent medical evidence confirming the applicant's condition and care needs. A medical report may be needed to set out the diagnosis, explain how the condition affects the applicant's ability to carry out daily tasks, and confirm that the need for personal care is likely to be permanent. Statements from family members or self-declarations are not usually sufficient.

When applying for an Adult Dependent Relative visa it is important to demonstrate that the applicant's condition is serious and long-lasting, rather than temporary or capable of improvement with treatment. A well-prepared medical report, directly addressing the requirements of the Immigration Rules, is often

critical to a successful application. Our immigration barristers can assist with instructing an appropriate medical expert to provide the necessary evidence.

3. How to Prove Lack of Adequate Care in the Home Country

In order to qualify for an Adult Dependent Relative visa, the applicant must additionally show that the required level of care is either **unavailable** or not affordable in their home country, even with practical and financial assistance from their family member in the UK.

Where a couple, such as the parents or grandparents of the sponsor, are applying together as Adult Dependent Relatives, only one of them must require long term personal care. However, it must be shown that the relevant partner is unable to provide this long term care.

Even where an applicant is able to demonstrate the required level of ill health or dependency, meeting the requirement regarding the lack of adequate care can be particularly challenging. In practice, many sponsors who are financially able to maintain and accommodate their dependent relative in the UK may find it difficult to convince the Home Office that they cannot instead fund sufficient care in the applicant's country of origin.

Applicants are required to provide objective evidence confirming that no suitable arrangements for their care can reasonably be made where they live. This might include demonstrating that there are no care homes or at-home care providers, no available family members able or willing to provide the necessary support, or that any available care would be prohibitively expensive. In some cases, it may be appropriate to provide medical evidence demonstrating that it would not be reasonable for the applicant to be cared for by a stranger.

Strong evidence of a lack of adequate care might include:

- Reports from local care agencies or healthcare providers confirming the absence or high cost of appropriate care services;
- Official reports or statistics about healthcare and social care provision in the applicant's country of residence;
- Statements from medical professionals or social workers regarding the lack of suitable alternatives; and
- Expert country background reports explaining the systemic difficulties in accessing long-term personal care.

The Home Office expects detailed, independent evidence. Personal assertions or unsupported statements by the applicant or their family are unlikely to be sufficient.

Our immigration barristers have extensive experience preparing Adult Dependent Relative visa applications and understand the high evidential threshold required by the Home Office. We can advise you on the types of independent evidence that will strengthen your application, assist in obtaining expert reports where necessary, and ensure that your case is presented as persuasively as possible.

4. Demonstrating Financial Maintenance and the Sponsor's Undertaking

Adult Dependent Relative visa applicants must demonstrate that they will be adequately maintained, accommodated and cared for in the UK without recourse to public funds. This obligation falls on the applicant's family member in the UK, who acts as the sponsor.

If the sponsor is a British citizen or a person settled in the UK, they must sign a legally binding undertaking confirming that they will be financially responsible for the applicant for a period of five years from the date of the applicant's arrival. This undertaking prevents the applicant from accessing public funds during that period and places the full responsibility for their support on the sponsor. If the applicant will be granted only temporary permission to stay, then the sponsor must provide an undertaking for the duration of permission to be granted. If the applicant receives public funds during the period covered by the maintenance undertaking, the UK Government may seek to recover the public funds from the sponsor who gave the undertaking.

The Home Office will require evidence that the sponsor has sufficient income and resources to meet this commitment. Supporting documents may include payslips, bank statements, employment letters, or evidence of savings. It must be clearly demonstrated that the applicant will be maintained and accommodated at a standard at least equivalent to, or above, the relevant level of Income Support.

Given the binding nature of the undertaking and the level of detailed financial evidence required, sponsors are strongly advised to seek expert legal advice to ensure this aspect of the application is prepared thoroughly and persuasively.

5. Settlement and Leave to Remain Under the Adult Dependent Relative Visa

If the sponsor is a British citizen or holds indefinite leave to remain (settled status), a successful Adult Dependent Relative applicant will normally be granted indefinite leave to enter or remain in the UK.

Where the sponsor has limited leave to remain – such as leave under the EU Settlement Scheme, refugee status, or humanitarian protection – the Adult Dependent Relative will generally be granted limited leave in line with the sponsor's status. Once in the UK, they may then apply for settlement or an extension when the sponsor becomes eligible or, in the latter case, upon extension of the sponsor's temporary permission.

6. Applying for an Adult Dependent Relative Visa from Outside the UK

The Adult Dependent Relative visa route is only open to applicants who are outside the United Kingdom at the time of application. It is not possible to switch into the Adult Dependent Relative route from within the UK, even if the applicant already holds valid leave to remain under a different immigration category.

7. Can You Apply for an ADR Visa from Within the UK? Human Rights Applications Explained

In limited circumstances, a dependent relative may be able to apply for leave to remain from within the UK on human rights grounds. This would typically involve an application based on [Article 8 of the European Convention on Human Rights](#), where removal from the UK would result in unjustifiably harsh consequences for the applicant or their family members.

Additionally, where an applicant applies for an Adult Dependent Relative visa from overseas and the Home Office is not satisfied that all the requirements of the route are met, the Home Office may still exercise discretion to grant permission to enter the UK. This can occur if refusal of the application would constitute a breach of Article 8 because of the unjustifiably harsh impact on the applicant or their family.

Applications relying on human rights grounds are complex and subject to a high threshold. It is therefore essential to seek expert legal advice to assess whether a human rights claim can be made and to ensure that the application is supported by strong, detailed evidence.

- [When Can You Apply to Stay as an Adult Dependent Relative From the UK?](#)

8. Adult Dependent Relative Visa Application Fees and Processing Times

Applicants for an Adult Dependent Relative visa must pay a Home Office application fee. As of 2025, the fee for an Adult Dependent Relative visa application made from outside the UK is £3,413. This fee is subject to change. If the sponsor has temporary 'protection status' (permission to stay as a refugee or with humanitarian protection) the relevant fee is £424.

In addition to the application fee, applicants may need to budget for additional costs, including medical reports, expert evidence on country conditions, and property inspection reports, if required to support their application.

Processing times for Adult Dependent Relative visa applications can vary. In most cases, applicants can expect to receive a decision within 12 weeks of submitting a complete application from overseas. However, complex applications, particularly those relying on human rights grounds, may take longer to process.

9. Common Reasons for Refusal of Adult Dependent Relative Visa Applications

Adult Dependent Relative visa applications are subject to a particularly **high refusal rate**. Understanding the common reasons for refusal can help applicants and sponsors to prepare stronger, more carefully evidenced applications.

A frequent reason for refusal is insufficient **medical evidence** demonstrating that the applicant requires long-term personal care. General letters from doctors or incomplete medical records are unlikely to satisfy the Home Office that the applicant's condition is serious and permanent and that, as a result of their conditions, the applicant requires long-term personal care. A detailed, expert medical report addressing the specific requirements of the Immigration Rules is often essential.

Another common reason for refusal is failure to demonstrate that **adequate care is unavailable or unaffordable** in the applicant's home country. Applicants must support their case with objective, independent evidence – such as reports from reputable care providers or country experts – rather than relying on personal statements.

Financial maintenance issues can also lead to refusal. Sponsors must show that they have the resources to support the applicant without recourse to public funds, supported by clear financial documentation.

10. Options After an Adult Dependent Relative Visa Refusal: Appeal or Reapply

A refusal of an Adult Dependent Relative visa application can be distressing, but it does not necessarily mark the end of the process. Depending on the circumstances, it may be possible to challenge the refusal or to submit a fresh application.

In some cases, a refusal of an ADR application can be appealed on human rights grounds, particularly if the decision is likely to result in unjustifiably harsh consequences for the applicant or their family member in the UK. Appeals are heard by the [First-tier Tribunal \(Immigration and Asylum Chamber\)](#), and it is important to present strong legal arguments supported by detailed evidence.

Alternatively, if an appeal is not appropriate or likely to succeed, applicants may be advised to prepare and submit a fresh application. A fresh application should address the reasons for the previous refusal and provide any additional evidence necessary to strengthen the case.

If your application for an Adult Dependent Relative visa [has been refused](#), our immigration barristers can advise you on the best course of action, whether through an appeal, a fresh application or an administrative review. We will work closely with you to build a strong, evidence-based case and maximise your prospects of success. Contact us for expert advice and professional representation.

11. Comparing the ADR Visa to Other UK Family Immigration Routes

The Adult Dependent Relative visa is specifically designed for family members who, due to age, illness or disability, require long-term personal care that cannot be provided in their home country. It is a narrowly defined and highly restricted route, with a high evidential threshold. In contrast, other family immigration routes focus on different circumstances and relationships. For example, family members such as [spouses](#), [civil partners](#), [unmarried partners](#), [parents of British children](#), or [dependent children](#) may be eligible to apply under other parts of the Immigration Rules. These routes often have different eligibility criteria, including financial requirements, relationship evidence, and English language ability, but do not require a need for long-term personal care.

12. UK Adult Dependent Relative Visa FAQs

Who is eligible to apply for an Adult Dependent Relative visa?



What is the long-term personal care requirement?



How can I prove that care is not available in my home country?



Can I apply for an Adult Dependent Relative visa from within the UK?



What financial support must the UK sponsor provide?



How much does an Adult Dependent Relative visa cost?



How long does it take to process an ADR visa application?



What are the most common reasons for ADR visa refusal?



Can I appeal a refusal of an Adult Dependent Relative visa?



Can I reapply if my ADR visa was refused?



13. How Our Immigration Barristers Can Help

Navigating the UK Adult Dependent Relative visa route can be legally complex, evidentially demanding, and emotionally challenging. At Richmond Chambers, our specialist immigration barristers provide expert advice and professional representation to help families reunite in the UK through this exceptionally restricted immigration route.

Advice on Adult Dependent Relative Visa Applications

If you are preparing to submit an application for an Adult Dependent Relative visa, we can:

- Assess your eligibility and provide a realistic appraisal of your prospects of success;



- Advise on meeting the long-term care and lack of adequate care requirements under the Immigration Rules;
- Assist with the preparation of detailed and persuasive supporting evidence, including medical reports and country-specific expert assessments;
- Draft and submit a well-structured visa application, with comprehensive legal representations tailored to your circumstances;
- Advise on options where a human rights application from within the UK may be appropriate.

Our approach is strategic, meticulous, and focused on giving your application the highest chance of success in a category with one of the highest refusal rates.

Support with Medical and Country Evidence

A critical component of an Adult Dependent Relative application is the provision of robust, independent evidence. We assist clients by:

- Advising on the instructing of appropriate medical professionals to produce expert evidence addressing the relevant legal criteria;
- Identifying gaps in available country evidence and sourcing expert reports or documentation to demonstrate the lack or unaffordability of care in the applicant's home country;
- Reviewing and organising supporting documents to ensure they directly address the Home Office's expectations.

Applications Based on Human Rights Grounds

Where an Adult Dependent Relative visa cannot succeed under the standard Immigration Rules, we also advise on:

- Making discretionary applications based on Article 8 of the European Convention on Human Rights, where refusal would result in unjustifiably harsh consequences;
- Preparing strong legal arguments and evidence to support a human rights-based claim for leave to remain from within or outside the UK;
- Representing clients in complex applications where Home Office discretion may be exercised.

Appeals Against Refusals of Adult Dependent Relative Visas

If your Adult Dependent Relative visa application has been refused, our immigration barristers can:

- Assess the merits of lodging an appeal based on human rights grounds, particularly under Article 8 ECHR;
- Prepare and submit a notice of appeal to the [First-tier Tribunal](#) (Immigration and Asylum Chamber);
- Draft detailed grounds of appeal supported by legal submissions, expert reports, and witness evidence;
- Represent you at the appeal hearing and provide strategic advice throughout the appeal process.

Our barristers have a strong track record of successfully overturning refusals through well-prepared and persuasively argued appeals. We work closely with families to ensure their case is presented comprehensively and with sensitivity to the personal circumstances involved.

14. Contact Richmond Chambers Immigration Barristers

At Richmond Chambers, we pride ourselves on being approachable, responsive, and proactive in understanding and meeting our clients' needs. We are a highly driven team, committed to delivering clear and reliable immigration advice as part of a professional and friendly service.

To speak with one of our immigration barristers about your Adult Dependent Relative Visa application or appeal, please call us on +44 (0)20 3617 9173, email us at info@richmondchambers.com or complete our online enquiry form below.

WE CAN ALSO ASSIST WITH

[Adult Dependent Relative Visa Eligibility Assessments](#)



[Medical and Social Care Evidence Preparation](#)



[Sponsor Maintenance and Undertaking Advice](#)



[Human Rights-Based Applications and Discretionary Grounds](#)



[Adult Dependent Relative Visa Refusals and Appeals](#)



[Applications for Leave to Remain from Within the UK](#)



WHAT CAN WE **HELP YOU WITH?**

To discuss your Adult Dependent Relative Visa application with one of our immigration barristers, contact our personal immigration team on 0203 617 9173 or complete our enquiry form below.

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How to Appeal an Adult Dependent Relative Visa Refusal

By Emilia Cieslak – Legal Associate

02 Oct 2025

The Adult Dependent Relative visa is a visa category designed for British people, settled people or those with refugee leave, humanitarian protection status, or limited leave under Appendix EU to bring family members in need of care to the UK.



How to Apply for an Adult Dependent Relative Visa From the UK

By Emilia Cieslak – Legal Associate

29 Sep 2025

Occasionally, at Richmond Chambers we receive enquiries from clients facing a challenging dilemma. A relative has arrived for a visit and either their...



Family Life in Adult Dependent Relative Visa Applications

By Ellen O'Neill – Pupil Immigration Barrister

04 Aug 2025

In cases where an individual is unable to satisfy Adult Dependent Relative Visa rules, decision-makers must assess if Article 8 'family life' applies, which is not automatic.



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immigration barristers

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